

20STCV44313 20STCV44313

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Case Number: 20STCV44313 Hearing Date: June 26, 2026 Dept: B

Hon. Lee S. Arian, Dept B

MOTION TO STRIKE AND/OR TAX COSTS

Hearing Date: June 26, 2026

CASE NO./NAME: 20STCV44313

LOUIS L. TOUTON, et al. v. KECK HOSPITAL OF USC, et al.

Moving Party: Plaintiffs Louis L.

Touton and Jean Gottlieb

Responding Party: Defendants Keck

Hospital of USC and John C. Lipham, M.D.

Notice: Sufficient

Ruling:

GRANTED IN PART.

BACKGROUND

This action arises from alleged negligent postoperative care following a laparoscopic hiatal hernia repair performed on August 28, 2019, at Keck Hospital of USC by Dr. Lipham. Plaintiff Louis Touton alleges Defendants failed to timely recognize and treat postoperative gastric distention and obstruction and prematurely discharged him on August 31, 2019, despite ongoing symptoms. Plaintiff alleges that as a result of these failures, Plaintiff developed

gastric ischemia requiring total removal of his stomach. On November 18, 2020, Plaintiffs filed the present action for professional negligence against Defendant John Lipham M.D. and Defendant Keck Hospital of USC.

On Plaintiffs' motion, the Court ordered the trial bifurcated as to the standard of care. (Order re Mot. to Bifurcate, Feb. 13, 2026.) The standard-of-care phase was tried to a jury between February 25 and March 10, 2026. On March 10, 2026, the jury returned a unanimous special verdict finding that neither Dr. Lipham nor Keck Hospital was negligent. The Court entered judgment on the verdict on March 17, 2026. The Court has since denied Plaintiffs' Motion for New Trial and Motion for Judgment Notwithstanding the Verdict. (Order, May 29, 2026.)

On November 2, 2022, Defendants Keck and Dr. Lipham each served offers to compromise under Code of Civil Procedure section 998, offering to waive then-accrued costs (approximately \$8,975.52), with express notice that costs would increase as the matter proceeded to trial. Plaintiffs neither accepted the offers nor objected to their timeliness, and the offers lapsed by operation of law. On February 9, 2024, Plaintiffs served their own section 998 offers seeking \$2,990,000.00 (Touton) and \$249,000.00 (Gottlieb). Plaintiffs did not obtain a more favorable judgment.

As the prevailing parties, Defendants served and filed a memorandum of costs on April 24, 2026 in the total amount of \$245,232.11, including \$180,824.47 in expert witness fees. On May 12, 2026, Plaintiffs moved to strike the memorandum in its entirety or, in the alternative, to tax costs. On June 15, 2026, Defendants filed an opposition. To date, no reply has been filed.

LEGAL STANDARD

A prevailing party is entitled as a matter of right to recover costs. (Code Civ. Proc., § 1032, subd. (b).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Automobile Assn.* (1993) 19 Cal.App.4th 761, 773–774.) Verification of the memorandum suffices to establish the reasonable necessity

of the costs; there is no requirement that invoices be attached. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) To be recoverable, a cost must be both reasonably necessary to the conduct of the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)–(3).)

DISCUSSION

A. Preliminary matter

Plaintiffs urged the Court to defer ruling because their post-trial motions, if granted, would place the parties as though no trial had occurred. That contingency has resolved: the Court denied the Motion for New Trial and Motion for JNOV on May 29, 2026. The judgment stands, Defendants remain the prevailing parties, and the motion is ripe for decision on the merits.

B. Item

11 — Court Reporter Fees (\$20,659.24)

Plaintiffs contend the parties agreed by written Memorandum of Understanding to share trial court reporter fees equally, with no provision permitting recovery of the apportioned fee by the prevailing party. Where parties agree to share such fees and do not reserve the right to seek recovery as a prevailing party, the agreement is enforced as written. (Anthony v. Li (2020) 47 Cal.App.5th 816, 824-825.) Defendants concede this item.

The motion is GRANTED as to Item 11, and these costs are taxed in the amount of \$20,659.24.

C. Item

1 — Filing and Motion Fees (\$1,383.75)

Filing and motion fees are expressly allowable. (Code Civ. Proc., § 1033.5, subd. (a)(1).) Plaintiffs' principal objection that the item was unsupported is resolved by Exhibit C, which reflects filing fees for the Answer and the motion for summary judgment, incurred on behalf of the answering Defendants Keck and Dr. Lipham. Plaintiffs' alternative argument, that some portion is attributable to dismissed Defendant Dr. Putnam (dismissed on a cost waiver), is not borne out by the documentation,

which identifies no Putnam-specific filing fee.

The motion is DENIED as to Item 1.

D. Item

4 — Deposition Costs (\$34,724.15)

Section 1033.5, subdivision (a)(3)(A)

expressly allows the costs of taking, video recording, and transcribing necessary depositions, and recovery does not depend on whether the deponent ultimately testifies at trial. (See *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 57; *Garcia v. Tempur-Pedic North America, LLC* (2024) 98 Cal.App.5th 819, 824-825.) Plaintiffs argue most depositions were not taken by Defendants or were not used at the bifurcated trial. The argument is unpersuasive. Trial use is not the governing test; the question is reasonable necessity when incurred, and the costs are documented (Exhibit D), facially proper, and reasonable in amount. Further, Plaintiffs provide “no authority for the proposition that the reasonable cost is the very lowest.” (*Landwatch San Luis Obispo County v. Cambria Community Services Dist.* (2018) 25 Cal.App.5th 638, 646.) Moreover, it was Plaintiffs who moved to bifurcate the standard-of-care issue, and that bifurcation is what narrowed the witnesses actually called. Having obtained that structure, Plaintiffs cannot fairly recharacterize as unnecessary the depositions that the full, unbifurcated case would have required. As the Court noted in addressing bifurcation, several defense experts, including Drs. Buckley, Dorros, Posalski, and Singh, were identified as potentially testifying on liability-related issues. The depositions were reasonably necessary as the case then stood.

The motion is DENIED as to Item 4.

E. Item

8b — Expert Witness Fees (\$177,338.51)

Expert witness fees ordinarily are not recoverable. (Code Civ. Proc., § 1033.5, subd. (b)(1).) Where a defendant serves a valid section 998 offer that is not accepted and the plaintiff fails to obtain a more favorable judgment, the court “in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses ... actually incurred and reasonably necessary.” (Code Civ. Proc., § 998, subd. (c)(1), *italics added*.) Such an award is always

discretionary, even when the statutory predicate is satisfied. (Chaaban, supra, 203 Cal.App.4th at pp. 54-55.)

The validity and timeliness of Defendants' offers are undisputed, and Plaintiffs failed to obtain a more favorable result. Defendants may therefore seek expert fees, but only at the Court's discretion. In exercising its discretion, the Court has considered the following:

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The statute reaches only postoffer fees, yet the documentation includes significant preoffer work. The offers were served November 2, 2022. Defendants represent that "only those expert invoices incurred after the rejection of defendants' 998 offers have been submitted." The record does not bear that out. Dr. Buckley's invoice (Exhibit E) bills work beginning June 15, 2021 and includes numerous 2021–22 entries (record review and deposition review of Drs. Lipham, Putnam, Johnson, Nakashima, Mahli, and Nakata, among others), all predating the offers. Section 998(c)(1) does not authorize recovery of those preoffer amounts, and the discrepancy between Defendants' representation and their own exhibits leaves the burden of establishing the recoverable, postoffer figure with Defendants. (Ladas, supra, 19 Cal.App.4th at pp. 773-774.)

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The case was tried only as to standard of care. The trial record reflects that, of the experts retained, Drs. Buckley and Dorros testified — Dr. Buckley on the standard of care and Dr. Dorros to rebut Plaintiffs' expert Dr. Duffy on the closed-loop gastric obstruction issue as it related to standard of care. The remaining retained experts (economic, life-care-planning, infectious-disease, and other damages- or causation-oriented experts whose work fills much of Exhibit E) were not necessary to the discrete liability question actually adjudicated.

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Plaintiffs suffered a great loss and while the jury decided in Defendants' favor, the 998 offer that was rejected and brings this issue of expert costs to the fore essentially had little to no chance of acceptance.

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current record does not reflect the postoffer fees.

Accordingly, the motion is GRANTED as to the expert witness fees.

F. Item 13 — Models, Enlargements, and Photocopies of Exhibits (\$2,761.60)

Models and enlargements of exhibits are allowable “if they were reasonably helpful to aid the trier of fact.” (Code Civ. Proc., § 1033.5, subd. (a)(13).) Plaintiffs contend few or no physical exhibits were used and that demonstratives were displayed electronically. The Court agrees with Plaintiffs.

The motion is GRANTED as to Item 13.

G. Item 14 — Electronic Filing or Service (\$3,099.54)

Fees for electronic filing or service through an electronic filing service provider are allowable where the court requires electronic filing. (Code Civ. Proc., § 1033.5, subd. (a)(14).) Electronic filing is required in this Court. Plaintiffs’ sole objection (absence of proof) is resolved by Exhibit G, which documents the e-filing and related charges incurred over the course of the litigation. The charges are facially proper and reasonable in amount.

The motion is DENIED as to Item 14.

CONCLUSION
AND ORDER

Plaintiffs’ Motion to Strike and/or Tax Costs is GRANTED IN PART and DENIED IN PART.

The Court taxes Item 11 (court reporter fees) in the amount of \$20,659.24, Item 8b (expert witness fees) in the amount of \$177,338.51, and Item 13 (models, enlargement, etc.) in the amount of \$2,761.60.

The motion is DENIED as to Items 1, 4,
and 14, and those costs are allowed as claimed.

Moving party shall provide notice of
this order.

Parties

who intend to submit on this tentative must send an email to the Court at
indicating intention to submit on the tentative as directed by the
instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the
tentative and elect not to appear at the hearing, the opposing party may
nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all
other parties in the matter, you should assume that others might appear at the
hearing to argue. If the Court does not
receive emails from the parties indicating submission on this tentative ruling
and there are no appearances at the hearing, the Court may, at its discretion,
adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court